

26PR00614 Matter of The Fred A. Rands & Meredith E. Rands Family Trust

County: sonoma

Division: Probate

Hearing date: 2026-08-28

Motion: Petition to Confirm Validity of Trust; Confirm Trustee; and Confirm Assets to Revocable Trust

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Tentative Ruling: This Court's order is conditioned on the beneficiaries of any probate estate of the settlors and the beneficiaries of the trust being the same. If that is not the case, counsel for petitioner is ordered to request to appear to so inform the Court.

The Petition, as amended by the supplement filed August 17, 2026, is APPROVED as stated below.

The assets at issue here are four IRA accounts (held with Fidelity, Capital Group, and All Spring) and one Fidelity General Investment Account. As for the Fidelity General Investment Account 8704, the petition is granted, as the trust, at section 1.03(a), contains a broad general assignment of assets to the trust that would encompass this account. See *Ukkestad v. RBS Asset Fin., Inc.* (2015) 235 Cal.App.4th 156, 163-164.

As for the IRA accounts, federal law governing IRAs prohibits trusts from holding an IRA. *Reich v. Reich* (2024) 105 Cal.App.5th 1282, 1291. The Court notes that granting a petition as to the IRA accounts pursuant to Probate Code §850 could result in negative tax consequences based on the nature of the asset at issue.

The Court is instead inclined to treat this as a petition to order the institution to pay the proceeds of the accounts to the trustee, as if the trust had been properly named a pay on death beneficiary. The Court acknowledges that the supplement filed August 17, 2026 indicates the petitioner's willingness to proceed in this way with respect to the IRA accounts. While no legal authority or legal argument is cited in support of this approach, the Court finds sufficient authority in its equitable power, particularly in the absence of any opposition after proper notice, or difference between heirs of the trust and heirs of a probate estate. The Court will sign the petitioner's proposed order lodged August 17, 2026.